

Arun Kumar Goel v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Others

High Court of Judicature at Allahabad · Division Bench · 1 April 2016 (dismissed as infructuous) — order-sheet 15.10.2012 to 1.4.2016 · WRIT - C No. 54022 of 2012 · **Petition dismissed as infructuous, without any decision on the merits. The Registry had classified and listed the petition under the caption 'a petition which is likely to be infructuous'; the list of infructuous cases was notified for objections and none was received, so the Chief Justice's Court (Chandrachud, C.J. and Yashwant Varma, J.) dismissed it on 1.4.2016 with liberty to the petitioner, in the event the cause of action survives, to move the Court with an appropriate application, and no order as to costs. Earlier, by interim order dated 5.11.2012 the Division Bench (Satya Poot Mehrotra and Het Singh Yadav, JJ.), finding 'the matter requires consideration', had issued notice and stayed proceedings pursuant to the Final Assessment Order dated 3.8.2012 subject to the petitioner depositing Rs. 1,20,000 with respondent no.2; that deposit was made and the interim order was repeatedly continued until the writ became infructuous.**

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HEADNOTE

Interim order-sheet, ending in dismissal as infructuous, in a writ challenging a Final Assessment made under Clause 8.1(b) of the U.P. Electricity Supply Code, 2005 in a theft matter. On a Provisional Assessment dated 15.6.2012, the consumer (Arun Kumar Goel) applied on 29.6.2012 for the videography relied on to be supplied so that he could file objections; instead, respondent no.2, by order dated 3.8.2012, treated that application itself as the objections, rejected it and made a Final Assessment of Rs. 2,36,377. The petitioner contended (a) that under Clause 8.1(b) he ought to have been given an opportunity of being heard, and (b) that under that clause the authorized officer may make a Final Assessment on the basis of the Provisional Assessment only when he 'finds that a case of theft has been established', whereas the impugned order recorded no such finding and was therefore vitiated. On 5.11.2012 the Division Bench (Satya Poot Mehrotra and Het Singh Yadav, JJ.) held that 'the matter requires consideration', issued notice, and granted interim protection: proceedings pursuant to the Final Assessment Order dated 3.8.2012 were stayed subject to deposit of Rs. 1,20,000 with respondent no.2, failing which the order would stand automatically vacated. The deposit was made (noted on 5.2.2016) and the interim order was continued across numerous benches and adjournments from 2012 to 2016. Ultimately the Registry classified the petition as likely to be infructuous; no objection to that classification was filed; and the Chief Justice's Court dismissed the petition as infructuous on 1.4.2016, granting liberty to move afresh if the cause of action survives, with no order as to costs. The Clause 8.1(b) contentions — the right to a hearing and the requirement of a recorded finding that theft is established before a Final Assessment — were never decided on the merits.

FACTUAL SUMMARY

Arun Kumar Goel filed Writ-C No. 54022 of 2012 before the Allahabad High Court against Dakshinanchal Vidyut Vitran Nigam Ltd. and others, challenging a Final Assessment made in a theft/assessment proceeding. On receipt of a Provisional Assessment dated 15.6.2012, the petitioner made an application dated 29.6.2012 before respondent no.3 praying that the videography mentioned in the application be provided to him so as to enable him to file objections against the Provisional Assessment. Instead of supplying the videography, respondent no.2 passed an order dated 3.8.2012 treating the petitioner's application as objections against the Provisional Assessment and rejecting the same, and by that order made a Final Assessment for an amount of Rs. 2,36,377. Before the Court the petitioner contended that, under Clause 8.1(b) of the U.P. Electricity Supply Code, 2005, he ought to have been provided an opportunity of being heard, and that under those provisions the authorized officer can make a Final Assessment on the basis of a Provisional Assessment only when he 'finds that a case of theft has been established' — a finding absent from the impugned order, which was therefore said to be vitiated. On 5.11.2012 the Division Bench (Satya Poot Mehrotra and Het Singh Yadav, JJ.) found that the matter required consideration, issued notice (accepted by counsel for respondents 1 to 3), directed a counter affidavit, and, hearing the question of interim relief, directed that proceedings against the petitioner pursuant to the Final Assessment Order dated 3.8.2012 (Annexure 9) remain stayed till the next date, provided the petitioner deposited Rs. 1,20,000 with respondent no.2, the interim order to stand automatically vacated on default. Owing to delay in obtaining a certified copy the time to deposit was extended (17.12.2012), and the interim order was continued across a long series of adjournments before numerous Division Benches through 2012-2016. On 5.2.2016 the petitioner's counsel stated that Rs. 1,20,000 had been deposited in compliance with the order dated 5.11.2012 and that the petition had not become infructuous. Nonetheless the Registry classified the petition as likely to be infructuous and, no objection to that classification having been received, the Chief Justice's Court (Chandrachud, C.J. and Yashwant Varma, J.)

dismissed the petition as infructuous on 1.4.2016, with liberty to move the Court afresh if the cause of action survives and no order as to costs.

REUSABLE CONSTRUCTIONS

1. On a prima facie challenge to a Final Assessment made under Clause 8.1(b) of the U.P. Electricity Supply Code, 2005 — where the consumer alleges denial of the opportunity of being heard and the absence of the recorded finding that 'a case of theft has been established' — the writ court may hold that 'the matter requires consideration', issue notice, and stay proceedings pursuant to the Final Assessment Order subject to the consumer depositing a part-sum of the assessed amount, the interim order to stand automatically vacated on default in deposit. **order of 5.11.2012**
2. It is arguable (held to require consideration, not decided) that Clause 8.1(b) permits the authorized officer to make a Final Assessment on the basis of a Provisional Assessment only where he 'finds that a case of theft has been established', so that a Final Assessment order recording no such finding, or passed without an opportunity of being heard, is open to challenge as vitiated. **order of 5.11.2012**
3. Where a consumer applies for the material relied on (here, videography) to be supplied so as to enable objections against a Provisional Assessment, and the licensee instead treats that very application as the objections, rejects it and proceeds to Final Assessment, the consumer may challenge the Final Assessment for want of a real opportunity to object. **order of 5.11.2012**
4. Where an interim order conditioned on a deposit is complied with and continued for years but the writ is thereafter classified by the Registry as likely to be infructuous and no objection to that classification is filed, the petition may be dismissed as infructuous with liberty to move the Court afresh if the cause of action survives — without any decision on the merits. **order of 1.4.2016**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)

OBITER

Interim stay of proceedings under a Final Assessment on part-deposit, pending consideration of a Clause 8.1(b) challenge (no hearing; no recorded finding that theft is established); merits ultimately left undecided and writ dismissed as infructuous

QUESTION

On a challenge that a Final Assessment under Clause 8.1(b) was made without an opportunity of being heard and without the required finding that 'a case of theft has been established', what interim protection should issue, and were the contentions decided?

HOLDING

Interim protection was granted and the merits were never decided. The Division Bench held on 5.11.2012 that the petitioner's contentions — that Clause 8.1(b) required an opportunity of being heard and that a Final Assessment may be made on the basis of a Provisional Assessment only when the authorized officer 'finds that a case of theft has been established', a finding absent from the order dated 3.8.2012 — meant that 'the matter requires consideration'. It issued notice and directed that proceedings pursuant to the Final Assessment Order dated 3.8.2012 remain stayed subject to the petitioner depositing Rs. 1,20,000 with respondent no.2, the interim order to stand automatically vacated on default. This was an interim arrangement only; the deposit was made and the order continued across many benches until, no objection having been filed to the Registry's 'likely to be infructuous' classification, the writ was dismissed as infructuous on 1.4.2016 with liberty to move afresh. The Clause 8.1(b) contentions were left open. **order of 5.11.2012; order of 1.4.2016**

EVIDENCE “as per the provisions contained in Clause 8.1 (b) of the U.P. Electricity Supply Code, 2005, the petitioner ought to have been provided opportunity of being heard.” **order of 5.11.2012**

EVIDENCE “the authorized officer can make Final Assessment on the basis of Provisional Assessment only when he “finds that a case of theft has been established”.” **order of 5.11.2012**

EVIDENCE “The matter requires consideration.” **order of 5.11.2012**

EVIDENCE “it is directed that proceedings against the petitioner pursuant to the Final Assessment Order dated 3rd August, 2012 (Annexure 9 to the Writ Petition) will remain stayed till the next date fixed in the matter, provided by the next date fixed in the matter, the petitioner deposits an amount of Rs. 1,20,000/- with the respondent no.2.” **order of 5.11.2012**

FLAG Interim order-sheet of 21 pages, dated orders from 15.10.2012 to 1.4.2016 across numerous Division Benches, with no printed page numbers and no reasoned final judgment; pins are order dates. The operative interim relief is the order of 5.11.2012 (Satya Poot Mehrotra and Het Singh Yadav, JJ.); the final disposal (dismissal as infructuous) is the order of 1.4.2016 (Chandrachud, C.J. and Yashwant Varma, J.). The nested quotation marks around 'finds that a case of theft has been established' are in the source.

PRINCIPLE TAGS

interim-stay-of-final-assessment-on-part-deposit On a prima facie Clause 8.1(b) challenge to a Final Assessment (no hearing; no finding that theft established) the Court found the matter required consideration and stayed proceedings under the Final Assessment Order subject to a Rs. 1,20,000 part-deposit, the order to vacate automatically on default — the same interim-stay-on-deposit posture as SCJ-1564 and SCJ-206. [order of 5.11.2012](#)

final-assessment-requires-hearing-and-finding-of-theft The contentions that Clause 8.1(b) requires an opportunity of being heard and a recorded finding that 'a case of theft has been established' before a Final Assessment were held to 'require consideration' and to warrant interim protection, but were left undecided as the writ became infructuous. [order of 5.11.2012](#)

writ-dismissed-as-infructuous-with-liberty-to-move-afresh Although the deposit was made and the petitioner asserted the writ had not become infructuous, the Registry's 'likely to be infructuous' classification drew no objection and the petition was dismissed as infructuous with liberty to move the Court afresh if the cause of action survives — no merits decision. [order of 1.4.2016](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 8.1(B) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 REQUIRED THAT THE PETITIONER BE GIVEN AN OPPORTUNITY OF BEING HEARD BEFORE THE FINAL ASSESSMENT DATED 3.8.2012

Not decided. The Court found the submission required consideration and granted interim relief; the writ was dismissed as infructuous before any decision on the merits. [order of 5.11.2012](#)

NOT DECIDED — WHETHER A FINAL ASSESSMENT UNDER CLAUSE 8.1(B) IS VITIATED WHERE THE ORDER RECORDS NO FINDING THAT 'A CASE OF THEFT HAS BEEN ESTABLISHED'

Not decided. The petitioner's contention that the order dated 3.8.2012 recorded no such finding was entertained as requiring consideration but never adjudicated. [order of 5.11.2012](#)

NOT DECIDED — WHETHER RESPONDENT NO.2 COULD TREAT THE PETITIONER'S APPLICATION DATED 29.6.2012 (SEEKING SUPPLY OF THE VIDEOGRAPHY) AS OBJECTIONS AGAINST THE PROVISIONAL ASSESSMENT AND REJECT IT

Not decided. Raised as part of the challenge to the Final Assessment; left open on the writ being dismissed as infructuous. [order of 5.11.2012](#)

RELATED CASES — SEE ALSO

SCJ-191 — Holds that a final assessment requires an opportunity of hearing before it is passed — directly on the petitioner's Clause 8.1(b) contention (a) here, which the Court left undecided.

SCJ-737 — Clause 8.1(b) theft matter holding there can be no recovery of a theft assessment without a final assessment — the same procedural-safeguards line the petitioner invoked as to the validity of the Final Assessment.

SCJ-1072 — Requires a provisional assessment before recovery of theft dues; part of the same Clause 8.1 procedural-prerequisites family engaged by the petitioner's challenge.

SCJ-1564 — Procedural order-sheet in which the Division Bench granted interim protection (restoration on part-payment) pending an assessment-calculation challenge — the same interim-relief-on-deposit posture and order-sheet form as here.

SCJ-206 — Interim stay in a theft-assessment challenge against the same discom (Dakshinanchal), pending consideration of the assessment's validity — a like interim posture.